

P.N. Haksar Papers

(I-II Installments)

Subject File # 24

Record of talks between P.M. and Premier
(Chou En Lai held on 22nd April, 1960 from
to A.M. to 1.10 P.M.)

PREMIER CHOU: We now have had two days' talks. Both sides have repeatedly stated their position and viewpoints on many questions. Yesterday we made some new points and you also put forward some views on the Simla Convention and made a new proposal. I think this preliminary ^{seeking} ~~stating~~ ^{avenues} of ~~views~~ should have a destination. Therefore, today I propose to deal with the question in three parts .-

- (1) Facts - I would like to present those facts on which our viewpoints are closer to each other.;
- (2) Common Grounds - from the beginning I have said that we have come here to find common grounds because it is only from this that we can reach agreement on principles;
- (3) The original proposal and new proposal by Prime Minister - I will reply to P.M.'s proposal and also would like to make a counter proposal.

I. Facts:- (1) Eastern sector. On the eastern sector of the boundary we also had a traditional and customary line. But the situation later changed. This line had appeared even in maps ~~before the~~ ^{published by the} British-(including those published in India) by them)-(during the years 1880 to 1936) and this customary line has always appeared to the south instead of the McMahon line. Between this traditional and customary line and the McMahon line there was an area occupied by many tribes (as many as 6). As accounts by various travellers would also prove, most of the tribes were under Tibet.

When the British were in India for a considerable period of time they kept the line to the south and this line was not changed till 1936. The British only established some ^{UP} connections with some of the tribes to the north of the line.

Between 1911 and 1913, i.e., on the eve of the fixing of the McMahon line, the British gradually pushed to the north of the line but even after McMahon line was fixed they did not very much push forward towards the north ^{and} of the line still continued to be drawn in the south. During the Second World War British ^{and suffered} ~~had~~ many losses in Burma and the British pushed to the north of the customary line and divided the area into several districts. The British started pushing intensively towards ^{the} north from 1942 and the local Tibetan government repeatedly protested against this and the central Chinese government also raised protest against this through Sikang.

As to the maps, not till 1936, i.e., 22 years after the Simla Convention and the exchange of notes, ^{did} a line to the north of the customary line appear ~~ed~~ on these maps but it was still called "undemarcated". Such maps were in use even after Indian independence. It was only in 1954 that the word "undemarcated" was removed and the line to the north was shown as an ordinary "firm" boundary line. Even after Indian independence, administration did not spread to this area at once. As your Excellency has said, it spread only gradually and even till 1950 ^{Kongul} ~~Kongul~~ area (Kamfing) still continued to be under Tibet. It was only after 1951 that the Tibetan administration withdraw from Kamfing area and it was not till 1954 that the Indian administration was extended to the entire area and the north eastern administration was formed and ~~became~~ directly under Indian administration.

The notes exchanged in 1914 at the Simla Convention did not form a dividing line. We cannot say that the McMahon line was fixed as a result of exchange of notes since the Central Chinese government did not recognise it and the change of situation had no absolute relation with fixing of the line.

Your Excellency mentioned about Simla Convention and the notes then secretly exchanged. 41

From the beginning, a mention of this (Simla convention and the notes) has been a shock to the Chinese people, and it

hurt their feelings because these are the legacies of imperialism. Your Excellency yourself mentioned in a friendly way that after the Young Husband expedition, the British government obtained many special rights in Tibet and that after Indian independence India gave that up out of friendship for China. It was precisely in this period, starting from the Young Husband expedition that the British tried to use their special rights in order to split Tibet from China, completely or partly and it was also in this ^{period} ~~spirit~~ that the British coined the word "suzerainty". They also brought pressure on China and Tibet to come to India and negotiate with McMahon. Moreover, the British representative, without letting the Chinese representatives know about it, secretly exchanged notes in Delhi before the Simla Convention was signed and the McMahon line was fixed as a result of this exchange of notes. Then this line was put on an attached map to the proceedings of the Simla convention, ~~put in~~ as part of the line between inner and outer Tibet. The British thus tried to sneak the map in. It is true that Ivan Chen~~g~~ did initial it but he immediately stated that his initialling it would not make it valid unless it was approved by his government, and the then Chinese government, the government of Yuan Shih-Kai did not approve the convention. Mr. Wellington Koo, who is now a Judge of the International Court at the Hague and who was then a diplomatic officer of the Chinese Foreign Office can testify to this. Even the Government of India acknowledges that the Simla Convention could not be binding on [&] Chinese government. That convention cannot be valid only because the Tibetan ✓ representatives signed it and this was for two reasons.-

- (a) treaties signed by Tibet previously had to be approved by Chinese government before they became valid and the Chinese government has pre-1914 documents to prove this; and
 - (b) the British also recognised that any treaty with Tibet would be valid only if the Chinese government approved of it, and the Chinese government has also pre-1914 documents to prove this.
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I would, therefore, like to mention in a friendly manner, that it ~~would~~[✓] be better if the Simla Convention is not brought up as a legal basis for Indian claim. But the Government of India did it in the past year and that is why the problem became complicated. I would once again like to mention that the Simla Convention and the notes cannot be accepted by the Chinese Government at all. One may then ask; -is it impossible to settle our dispute ~~on~~ⁱⁿ the eastern sector? No.

In the past 10 years or so our thinking ~~has~~^{is} been as follows: We realise that there is a dispute and we think that if both sides take into account not only the historical background but actual situation, a reasonable settlement is possible.

As regards the historical situation; first the line in this sector was to the south and later it changed to the north. The tribes in between were not under the British rule from the ^{not} beginning. They were/entirely under Tibet, but some certainly were. Therefore, the area is a disputed area and we say [✓] that the boundary in this sector was never delimited or fixed or demarcated.

As regards actual situation, after Indian independence, the Government of India gradually pushed on and at two or three points India even exceeded the McMahon line, ~~when~~[✓] we have checked this with documents relating to the McMahon line which are in ~~your~~[✓] possession.

In view of this actual situation we take the following position:

- (a) we say that we cannot recognise the McMahon line;
- (b) but we will not cross that line since Indian troops have already reached it; and
- (c) as regards two or three points where Indians have exceeded the McMahon line, we are willing to maintain the status quo ^{for} ~~per~~ negotiations.

We have brought in all these historical facts only to show that there has been a dispute for long and that the boundary is not delimited. We did not make any claims nor did we put forward any pre-requisites for talks. 43

I would like to add that when I mentioned two or three points I referred to the following :-

- (i) Tamadem: The Chinese Government appreciated that the government of India withdrew forces when it was pointed out to them that they had exceeded the McMahon line there;
- (ii) Longju and Kinzamane: we have checked with our maps attached to the notes and we found that these are north of the McMahon line. Between Longju and Migyton there are no high peaks.

These are however minor points.

(ii) Western sector: Now, as regards the western sector of the boundary, Sinkiang had long historical relations with China dating to as early as Han dynasty (2000 years ago) and we have uninterrupted historical records to prove this. Since then the British maps published upto 1862 are approximately the same as the Chinese maps. When I say British maps, we also include the Survey of India maps. This delineation of the western sector of the boundary has a basis, namely, the Karakoram water-shed. The Karakoram has a very high peak called the Kunlun mountain which lies between Sinkiang and Tibet and which is the line of demarcation between Sinkiang and Tibet. On its left is the Kara, to the west is the Karakoram range, whose water-shed divides ^{Hunyu} ~~Hansa~~ from Sinkiang and the watershed between Sinkiang and Ladak. Karakoram extends right upto the Konka Pass. To the south of this are Chifang-Chenmo, Pangong Lake and the Indus Valley. If we talk about geographical features in the eastern sector then such are the features for the western sector.

From 1862 to 1943 many British Indian maps drew no line here but showed the region in a colour shade which went deep into Chinese territory and therefore these maps were different from the maps obtaining in China. But even then, these maps clearly showed this sector of the boundary was "undefined". In 1950, after the Indian independence, maps similar to the present Indian maps came into circulation - the colour shade had gone but still the boundaries were called

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"undefined". It was only in 1954 that an ordinary boundary line was drawn and the word "undefined" was removed. Therefore, there are four stages: one upto 1862 when the maps were close to the Chinese maps; in the second and third stages some changes took place. Firstly, the colour shade moved more into Chinese territory but later on the colour/^{ed}shade area approximated to the area now included in the Indian maps; and in the fourth stage the boundary was marked as "defined".

Your Excellency mentioned that in 1953 some change was made in the Indian maps in Hanza area and that it was to the advantage of China. We have not found this map of India but we noticed that in the present Indian maps and in the present Pakistan maps there is a difference here in this area. In the Pakistan maps the area here existed extends into Chinese territory. In the Indian maps the boundary line is further to the south but it is still not in accordance with the watershed.

With reference to administrative jurisdiction in the western sector ever since Sinkiang became part of China in the 18th century it has been a part of Khotan (Ho-tien). of *all* water system north of the Khyonka pass and Karakoram flow towards the north. Chinese administration has always reached Aksaichin area. In the year 1891 to 1892 ^{the} Manchu government sent people to Karakoram and Chang-Chenmo valley for carrying out surveys. These people confirmed that our boundaries lay here. We have records to prove this. The KMT also surveyed the Khyonka pass. In fact, the local government in Sinkiang had invited some Soviet experts to come and do the survey.

So, on Chinese maps this sector has always been as it is. Minor inaccuracies may be possible because the maps are ^{small} large-scale maps but the general direction of the boundary has never changed on our maps. *45*

As I mentioned yesterday, we never realised that there was any dispute in this area. This sector of the boundary is also unfixed and undemarcated, but it is only two years ago

when Indian soldiers intruded into our territory and particularly since March last year when the Government of India mentioned in one of their notes about the 1842 treaty that we first came to know about this. But we feel that there is no basis for India's claim to this territory. The Indian government asked us to withdraw the troops from this area which has been historically a part of China. Like this it will be impossible to find a solution.

If we discuss the boundary, then we discuss both the sectors as being undelimited or unfixed and we cannot accept any territorial claims.

(iii) Middle Sector: A comparison of our maps shows that in this sector the boundary line is basically the same. There are only 9 places where there are individual disputes but these can be settled separately in the boundary talks. I would only like to add a word about what we in Chinese call Polin Samdo. It is the same as Pulam Sunda. We have checked with maps other than Chinese and this place is the same as the one which is fixed as trade mart in the Sino Indian agreement on Tibet.

II. Common Ground: If we seek avenues to settlement, we must have common grounds. Is there any common ground? I think there is. (i) on the question whether the boundary line is determined or delimited or not we must have a common understanding. From that we can see in eastern sector it is not defined and therefore we must discuss it. You say that in the eastern sector it is determined and that the Chinese government should accept it as such. But we think it should be settled through negotiations because the situation has changed not only before but ^{also} after the Indian independence.

In the western sector we say we have a traditional customary line. But the Indian Government objects saying that the boundary line should be to the east of this customary line. I have pointed out that Indian maps have changed four times. So, how can we say that the boundary in this area is determined

or delimited?

In the middle sector the boundary line has been basically the same but it has never been demarcated.

Therefore, we must have some common understanding and we think that it is possible to have such an understanding. The boundary line has to be fixed by negotiations.

Your Excellency was quite right when you said the other day that we must seek a solution which brings no defeat to any side and that it should be reasonable, equitable and friendly.

(ii) Although our boundary is ^{not} formally delimited or fixed, there exists a line of actual control. In the eastern sector it is the McMahon line and on the western sector the line is the Korakoram and Konka pass. By the line of actual control I mean that administrative personnel as well as patrolling troops of one side have both reached upto that line.

In the middle sector also there is a line of actual control. This is a common ground and this can be considered as a basis for determining our boundary dispute.

(iii) When we consider geographical conditions for delimiting a boundary, watershed is not the only condition. In the eastern sector there is the Himalayan mountain and its watershed but four valleys cut across this watershed.

In the western sector also there is a watershed but there are also valleys like Chⁿang-Chenmo, Pangang and Indus Valley. If we take the watershed principle, it should be made applicable to both sectors. Similarly also the principle of valleys.

In the central sector there is a geographical feature of mountain passes. This also can be made equally applicable to all sectors.

(iv) (iii) Since we are going to have friendly negotiations neither side should put forward claims ^{to} of an area which is no longer under its administrative control. For example, we made no claim in the eastern sector ^{to} of areas south of the line but India made such claims in the western sector. It is

difficult to accept such claims and the best thing is that both sides do not make such territorial claims.

Of course, there are individual places which need to be readjusted individually but that is not a territorial claim.

(Xv) We should also take into account national feelings. Your Excellency and some other friends yesterday mentioned to me about Indians having deep feelings towards Himalayas. We readily acknowledge this. But similarly the Chinese people and other adjoining countries like Nepal and Bhutan also have feelings for Himalayas. People both to the north and the south of the Himalayas thus have common feelings around Himalayas. This is a common point and Himalayas should become a mountain of friendship between China and India and other adjoining countries.

You can also appreciate that the Chinese particularly the Sinkianese have the same feelings towards Korakum (which are called in ancient Chinese "Tsung" mountains) and this should also become a mountain of friendship. This kind of feeling is most precious for maintaining friendly relations.

III. New proposals: I have already mentioned that there is divergence of facts and basis ^{on} ~~of~~ both sides. I have mentioned ^{five} ~~four~~ points as our common grounds.

You put a proposal yesterday. It seems to us quite impossible for both sides to reach a conclusion on examination of the material in a few days' time. When you start such an examination more documents naturally come in. I came here mainly for reaching an agreement on principles; and therefore we have not brought with us any original documents. 48

The joint committee may take somewhat long time but its main duty will be to examine documents and maps and if necessary it may do on the spot investigations. After facts are clarified we can achieve some common understanding like the viewpoints mentioned above by me. We may also fix some time limit for the committee to submit its report either jointly or separately.

and then afterwards we will again hold talks at a higher level. Secondly, I would like to repeat that while the joint committee is still functioning and the negotiations are still going on status quo should be maintained. By status quo I mean maintaining lines where administrative jurisdiction of each side has reached.

In order to maintain the status quo, even after the boundary line is determined, we should make a ^{line} of friendship and for this purpose forces of both sides should be removed ^{which} from the border. The distance to ~~to~~ each force should be removed can be decided by mutual agreement and in accordance with ~~the~~ favourable geographical features.

Merely stopping of the patrolling of the border will not remove danger. According to our information Indian troops at Kinzaman~~a~~ started patrolling recently and advanced several kilometers towards the north-west side. However, we have strictly ordered our outposts to avoid any contact but if the troops are near to each other on the border there is always a danger of conflict.

I should be glad to hear of your views on this.

In addition I may mention that if you wish to show us any material in order to explain your basis of ~~the~~ arguments we shall also be happy to see it.

I have taken a long time but I have said all that I wanted to say and have also stated the facts on which we have made our statement. The purpose of doing this is to try to reach an agreement on principle which we think is possible through talks. Some documents ~~also~~ could be produced. If we could reach such an agreement it would facilitate easing of tension and it will be in the interest of friendship and world peace.

P.M.

I am grateful to your Excellency for the pains that you have taken in giving us a detailed survey of your position. You have referred to many points relating to facts and many matters. Obviously, if I deal with all these matters

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^{not}
~~separately~~ it will take ^{as} much time if not more and there is no time for it now.

Facts are certainly most important. It is on the basis of facts that opinions are formed. In regard to facts also, however, there may be ^a difference of opinion. But broadly speaking, we should be able to have some common basis over most if not all, the facts.

Now I find that there is a very big difference - on past history and present facts. I can, of course, put my view of the facts. I have, however, been wondering whether we should not deal with the facts, since they are so important, in a more concise and definite way. We should take any sector and go into that with some exactitude over maps etc., and precise references (if you want ^{precision} it) and we ~~can~~ ^{may} have one or two ~~officers~~ advisers with maps or perhaps they can take up the matter separately.

Your Excellency referred to the eastern sector and you also stated ^{your} ~~the~~ objection to the McMahon line and the Simla convention. We do not say McMahon line or the Simla conference is the final decision. But we raised it as a piece of historical evidence and ^{along} with ~~no~~ other ^{factors} ~~purpose~~ and it certainly is an important piece. That part which you call the tribal part where rather primitive tribes live, has always been under the direct political control of whatever government had existed in India. Actual administration varied greatly. Britain was not interested in the progress of the tribes. They were only interested in exercising influence over them and they also had some treaties with them. But this was so not only in eastern sector but also in the North-Western ^{province} Frontier/also. Actually, they showed the fully administered areas in one way and the other areas under influence in another way. That is why some confusion may arise. But after independence we could not treat any of our population differently. Therefore, we brought them under our administrative apparatus (like opening of schools, hospitals,

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etc.) That may create some misunderstanding. But in the central, eastern and the western sectors of the boundary we have had, during the last hundred years or more, numerous precise surveys and we have made maps 1" to 2 miles and 1" to 4 miles. There have also been geographical surveys in abundance practically every few years and if necessary I can give names of the leaders of the surveying teams and the years in which they were held.

As regards the western sector adjoining Sinkiang and Tibet, for almost all the area we have so many records of surveys and revenue collection which would show that this area was under continuous control and occupation of the Kashmir State government.

I wonder whether your Excellency knows about a certain small village of Minsar in Tibet. It is completely isolated from the Indian areas. It is about 130 miles from our border in Ladakh and is on the caravan route from Gartuk to Mansrover. It is an interesting survival of old days; in accordance with ~~the~~ old treaties; It has been a part of Ladakh in Kashmir ^{and} although it is quite isolated ⁱⁿ from Tibet. People of this place paid revenue to the Kashmir government till recently. Every two years the Kashmir officials went to Minsar and collected revenue and came back. This went on upto 1950. It is rather odd but it is an old relic and it is a symbol and some evidence of old treaties being honoured.

In these old treasury and revenue records we have good evidence ^{of} ~~and~~ continuing control and occupation of the whole Ladakh area.

Then take for example the northern portion bordering Sinkiang. I think I am right in saying that Sinkiang never came beyond ^{Kuen Lun} Kongkan mountain. It reached Korakoram ¹⁹⁴⁵ in 1892.

I am just mentioning ^a few odd facts which throw light on the frontier situation. If ~~you~~ ^{we} go into them more precisely we get a more connected picture. I have just mentioned Minsar.

I was also told by Bhutan government that they have enclaves right in Tibet from where they collect^{ed} revenues for a number of years. These are, of course, old relics but they serve to throw light on the situation.

Your Excellency mentioned about neither side putting forward any territorial claims. I agree. In fact, to make such claims has been repugnant to us and is out of keeping with our approach to problems.

The question is mainly factual. When it is admitted that certain territories are attached to certain area then the question ends. Take again for example the eastern part of Ladakh. Considerable part of it is at present in Chinese occupation. According to us this occupation is only a recent one, in the last one or two years. In some other parts like northern Ladakh it may be longer but these changes are recent changes. We have enough evidence, ~~that is~~ of people going to eastern Ladakh in the last 11 years and finding no trace of any Chinese there.

As regards eastern sector, we stand by our well established boundaries in this area which were not made by the McMahon line or the Simla Convention but were only confirmed by it.

Since a great deal depends upon facts, if we can reduce our differences as regards facts it might help. Otherwise, we would be still on moving foundations.

PREMIER CHOU: Regarding collection of taxes in Minsar we also

collected taxes in the eastern sector till 1950. Regarding examination of material, if you think it is useful to prove your point of view we shall certainly be happy to see it.

But we have not brought our material with us and moreover it will only waste time if we were going to look into it. Perhaps we may do ^{as follows} it. Some people from our party can go to the External Affairs Ministry where some of your own officers can sit with them and they can take down and make notes. ✓

P.M. I agree and if it is convenient your officers can go to the Ministry at 3.30 in the afternoon.

(It was decided that three or four officers from each side will meet in the External Affairs Ministry at 3.30 p.m.

P.M. gave instructions that a full picture about our case on the western sector with reference to ~~the~~ maps and old records may be given to the Chinese.)

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